

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

=====X

OLIVER LAWRENCE and LAYVETTE NWAJEI

Plaintiff,

-against-

residence

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER BHOGAL, and
POLICE OFFICER JOHN DOE(S), (WHOSE NAME(S)
and SHIELD NUMBER(S) ARE PRESENTLY
UNKNOWN)

Defendant.

=====X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
February 12, 2024

Yours, etc.

Kevin James

KEVIN JAMES, ESQ. -Of Counsel
AVILES LAW FIRM, PLLC.
Attorneys for Plaintiffs
145 Hudson Street, Suite 5C
New York, NY 10013
(212) 898-8888

Index no.

SUMMONS

Plaintiffs designate New
York County as the place of
trial

Basis of Venue:
Plaintiff LAWRENCE

resides:
180 South Street, 17J
New York, New York 10023

TO: THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

New York City Police Department
One Police Plaza
New York, New York 10007

Police Officer Bhogal
One Police Plaza
New York, New York 10007

The Comptroller of the City of NY
1 Centre Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

=====X
OLIVER LAWRENCE and LAYVETTE NWAJEI,

Index no.

Plaintiff,

VERIFIED COMPLIANT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER BHOOGAL, and
POLICE OFFICER JOHN DOE(S), (WHOSE NAME(S)
and SHIELD NUMBER(S) ARE PRESENTLY
UNKNOWN),

Defendant.

=====X

Plaintiffs, by and their attorneys, AVILES LAW FIRM, PLLC, complaining of defendants,
respectfully allege, upon information and belief, as follows:

1. At all times hereinafter mentioned the defendant, THE CITY OF NEW YORK was and
is a municipal corporation, duly organized and existing under and by virtue of laws of the State of New
York.

2. That at all times hereinafter mentioned, the defendants, THE CITY OF NEW YORK, its
agents, servants and/ or employees operated and maintained police forces charged with the duty and
responsibility of maintain the peace in the City of New York.

3. At all times herein mentioned the plaintiff OLIVER LAWRENCE was a resident of the
County of New York, City and State of New York.

4. At all times herein mentioned the plaintiff LAYVETTE NWAJEI was a resident of the
County of New York, City and State of New York.

5. At all times herein mentioned, the defendant, NEW YORK CITY POLICE
DEPARTMENT, is maintained by the defendant, THE CITY OF NEW YORK.

At all times herein mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, is
operated by the defendant, THE CITY OF NEW YORK.

7. At all times herein mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, is controlled by the defendant, THE CITY OF NEW YORK.

8. At all times herein mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, is managed by the defendant, THE CITY OF NEW YORK.

9. At all times herein mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, is supervised by the defendant, THE CITY OF NEW YORK.

10. At all times herein mentioned, it was and still is the responsibility of the defendant, THE CITY OF NEW YORK, in the operation, management, control, maintenance and supervision of its said police force, to provide trained, competent and duly qualified patrolmen to preserve the peace and protect the safety and welfare of the public, and in connection therewith to promulgate and enforce, and it did promulgate and have in full force and effect, rules and regulations for the guidance of its police officers.

11. At all times herein mentioned, the defendants, POLICE OFFICERS BHOGAL and "JOHN DOE " was employed by the said police force of the defendant, THE CITY OF NEW YORK.

12. On April 4 2023, within ninety (90) days after the claim herein arose, plaintiff caused a Notice of Claim, in writing, sworn to by the claimant, to be served on the defendant, THE CITY OF NEW YORK, said notice set forth the name and post office address of the claimant, the nature of the claim, the claims, the time, the place and the manner in which they arose, and the items of damage and injury claimed to have been sustained so far as then practicable.

13. More than thirty (30) days have elapsed since the presentation of the aforesaid claim and the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, have refused and neglected to make an adjustment or payment thereof and one (1) year and ninety (90) days have not elapsed since the cause of action arose upon which said claim is made.

14. Neither a statutory hearing or physical exam of the plaintiff was never requested and thus waived by the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

15. On or about December 20, 2022, at approximately 12:00 P.M., Plaintiff OLIVER LAWRENCE was operating a vehicle bearing New York State license plate number JPF5872, wherein LAYVETTE NWAJEI was a passenger, that was stopped by a vehicle owned by THE CITY OF NEW YORK operated by Officer Bhogal.

16. Plaintiff's vehicle was at or near Tillary Street, County of Kings, State of New York. At that time, the Plaintiff's vehicle was stopped by a vehicle operated by Officer Bhogal.

17. Upon information and belief, at the time of the subject incident, Officer Bhogal, along with Police Officer "John Doe", demanded the Plaintiff OLIVER LAWRENCE and LAYVETTE NWAJEI respectively, and demanded the Plaintiffs exit the vehicle. The Plaintiff complied. Plaintiff OLIVER LAWRENCE AND LAYVETTE NWAJEI arrest lasted for several hours subjecting to both physical pain, humiliation and mental anguish.

18. At the aforesaid time and place, the said POLICE OFFICER BHOGAL and POLICE OFFICER "JOHN DOE", while acting in the performance of their duties and within the scope of their employment and on behalf of the said police force of the defendant, THE CITY OF NEW YORK, so negligently, carelessly and recklessly and in violation of plaintiff's civil rights conducted their duties that they, without provocation or legal cause, Petitioner's were immediately arrested by Officer Bhogal and Police Officer "John Doe" who used extreme force, injuring the Petitioners in the process.

19. The aforesaid occurrence and injuries resulting therefrom were caused solely by the negligence and violation of law of defendants, without any negligence on the part of the plaintiff contributing thereto.

20. By reason of the aforesaid, the plaintiff was made sick, sore and has remained so since the occurrence; they have suffered and will continue to suffer great pain; they have undergone and will be required to undergo painful medical treatment and has expended and will be required to continue to expend sums in connection therewith; they have been and will be prevented from attending to their usual duties and occupation and, upon information and belief, their said injuries are permanent.

21. By reason of the foregoing, the plaintiffs has sustained damages in the amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

22. Plaintiff repeats and realleges each and every allegation contained in the paragraphs hereof numbered 1 through 21 with the same force and effect as if herein again at length set forth.

23. As a result of the foregoing. The defendants willfully, wantonly, maliciously and in bad faith violated the civil federal, state, and local rights of the plaintiff.

24.. The defendants, by the acts of the individual police officer defendants, employed by the defendants, THE CITY OF NEW YORK, violated the plaintiff's civil rights, as said rights are secured by 42 U.S.C. 1981, 1983, 1985(2)(3), 1986 and 1988, and the Constitutions of the State of New York and the United States, including the First, Fourth, Fifth, Eighth and Fourteenth Amendments.

25. The defendants have deprived the plaintiff of his rights, privileges and/or immunities secured by the Constitution and laws of the United States, including his rights to due process guaranteed by the Fifth and Fourteenth Amendments to the said Constitution.

26. By reason of the foregoing, the plaintiff has sustained damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

27. Plaintiff repeats and realleges each and every allegation contained in the paragraphs hereof numbered 1 through 27 with the same force and effect as if herein again at length set forth.

28. That the defendants, herein, their agents, servants and/or employees was negligent in the following:

(a) hiring and retaining of a person or persons who was/were unfit to serve as custodial, correctional, court, legal, clerical and/or police officers and who it knew or should have known had negligent, reckless, careless or dangerous propensities and a lack of proper temperament, organization, reliability, responsibility, carefulness and prudence; in that the City of New York, its agents, servants

and/or employees failed to exercise reasonable precautions in employing and retaining said officers by failing to properly investigate their background and employment records and/or having knowledge of said records, thereafter hiring and/or retaining said officers; and,

(b) in the training and instruction of its custodial, correctional, court, legal, clerical and/or police officers by not exercising care in instructing them as to their deportment, duties, behavior and conduct as police officers and representatives of the City of New York and in the training and instruction among other things, on the proper use of their nightsticks, handcuffs, etc. and/or method of arrest, detainment and/or release;

(c) in failing to use such care in the performance of custodial, correctional, court, legal, clerical and/or police officer's duties as a reasonably prudent and careful custodial, correctional, legal, court, clerical or police officer would have used under similar circumstances including but not limited to, improper and negligent use of or carrying out of their duty which a police officer of ordinary procedure would not have done all without any negligence on the part of the claimant contributing thereto.

30. That by reason of the foregoing, the plaintiff was caused to be falsely arrested and illegally deprived of his liberty and civil rights; was caused to suffer imprisonment and confinement; was caused to be assaulted and battered by the defendant, CITY OF NEW YORK, its agents, servants and/or employees, thereby sustaining pain and suffering, severe, serious and permanent personal injuries; was obliged to undergo medical care and treatment; was incapacitated from his usual vocation; incurred medical expenses; incurred legal expenses; and is thereby damaged in a sum of money exceeding the jurisdiction of all lower Courts.

WHEREFORE, plaintiff demands judgment against the defendants on all causes of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
February 12, 2024

Yours, etc.

Kevin M. James

KEVIN JAMES, ESQ.-Of Counsel
AVILES LAW FIRM, PLLC
Attorneys for Plaintiff
145 Hudson Street, Suite 5C
New York, NY 10013
(212) 892-8888

VERIFICATION

KEVIN JAMES, ESQ., affirms under penalty of perjury:

That affirmant is the attorney for the Plaintiff(s) in the action within; that affirmant has read the foregoing VERIFIED COMPLAINT and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes it to be true and the reason that this verification is not made by Plaintiff(s) and is made by affirmant is that Plaintiff(s) are not presently in the county where the attorneys for the Plaintiff(s) have their office.

Affirmant further says that the source of affirmant's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge is from investigations made on behalf of said Plaintiff(s).

Dated: New York, New York
February 12, 2024

Yours, etc.

KEVIN JAMES, ESQ.-OF COUNSEL
AVILES LAW FIRM, PLLC
Attorneys for Plaintiff
145 Hudson Street, Suite 5C
New York, NY 10013
(212) 898-8888